

107	Scates vs. Regal Entertainment, Inc., 24-01381325	Defendants REGAL ENTERTAINMENT, INC. dba REGAL FOOTHILL TOWNE CENTER (erroneously sued as REGAL ENTERTAINMENT, INC.) and REGAL FOOTHILL TOWNE CENTER ("Defendants") move to compel Plaintiff John Scates to submit to a medical examination as follows: MEDICAL EXAMINER: Paul Kaloostian, M.D. (Dr. Kaloostian), a Board Certified Neurological Surgeon. DATE/TIME: On any date and time the Court orders. PLACE: 960 E Green St, Suite 320 Pasadena, CA 90116. SCOPE: A physical examination. The purpose and scope of the examination is to obtain an independent evaluation and assessment of Plaintiff's current and future condition and/or future prognosis from Dr. Kaloostian's standpoint based upon his background, experience and training, and may include, but is not limited to, the taking of an appropriate oral history, a physical examination of the area(s) at-issue, and such diagnostic procedures as Dr. Kaloostian deems necessary to complete a diagnosis, assessment of past and future treatment, prognosis, the need for and costs of future treatment(s), if any. No tests will be performed that are painful, protracted or intrusive. Dr. Kaloostian may ask, and Plaintiff shall answer, questions relating to the nature and extent of the injuries alleged to have been sustained in the incident that is the subject matter of this action; present symptoms and conditions; medical history, including the manner in which the injuries were incurred; prior and subsequent injuries and diseases; and Plaintiff's occupational history. There shall be no inquiry, other than is necessary for purposes of diagnosis and evaluation of the injuries, symptoms and conditions, into the conduct, events, or circumstances alleged to have produced or contributed to the happening of the incident. Dr. Kaloostian may use, and Plaintiff shall cooperate in the use of accepted diagnostic instruments, tests, manipulations and techniques, but no procedure causing undue pain or discomfort to Plaintiff's life or health shall be used except by order of this Court, granted with notice, on a further showing of good cause therefore. Any and all reports and/or test results interpreted by Dr. Kaloostian in connection with this examination will be produced pursuant to the provisions of California Code of Civil Procedure sections 2032.640 and 2034.210 at or before the time of her deposition, if any. Lastly, should Plaintiff require the use of an interpreter, Defendants require that Plaintiff notify Defendants at least
-----	--	--

		ten (10) days prior to the scheduled appointment. Should Plaintiff fail to notify Defendants timely, the use of an interpreter will be waived. Should Plaintiff require an interpreter but fail to notify Defendants as required herein, Plaintiff's inability to proceed with the scheduled appointment as a result of no interpreter being present shall be treated as a late cancellation as outlined below. Plaintiff filed a notice of non-opposition, stating that he does not oppose the motion and will appear for his examination. Plaintiff asks the Court not to award sanctions since he will appear for his examination. The Court notes that Defendant complied with the meet and confer and separate statement requirements for this motion. (Cal. Rules of Court, rule, 3.1345, subd. (a)(6) and Code Civ. Proc., § 2032.250, subd. (b).) Next, the Court finds good cause for Plaintiff to participate in the examination because Plaintiff has put the following injuries at issue in his claim for damages, responses to discovery, and deposition responses: concussion, broken ribs on left side, bruising, loss of consciousness, loss of breath, right knee pain resulting in knee replacement, hand tremors, increased loss of balance and emotional distress. The examination as described in the proposed notices and demands sufficiently specify "the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the physician[s] who will perform the examination[s]" as required pursuant to Code of Civil Procedure section 2032.220(c). (See Exhibits F and I.) Given the above, the motion is GRANTED. (Code Civ. Proc., §§ 2032.220, 2032.310, and 2032.320.) The examination should take place on a mutually agreeable date and time but SHALL take place within 20 days of notice of this order. Plaintiff's failure to participate in the examination within 20 days of notice of this order may result in additional sanctions. The Court also finds sanctions appropriate under the circumstances. Defendant's request for sanctions is GRANTED in the amount of \$2,400 for the late cancellation fees plus \$1,060 for preparing the motion, for a total of \$3,460. <i>Defendant to give notice.</i>
108	Elsaey vs. Premier Chrysler Dodge Jeep Ram of Buena Park, 24-01413332	<i>Off-calendar.</i>